

DOCUMENT TITLE: Section 378 and 379, Indian Penal Code, 1860 (Theft)

COURT: Parliament of India / Statutory Criminal Enactment

CITATION: Central Act No. 45 of 1860, Sections 378, 379 (Corresponding to Section 303, Bharatiya Nyaya Sanhita, 2023)

BENCH: Statutory Criminal Code

DATE OF JUDGMENT: 1860-10-06

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[Section 378: Definition and Ingredients of Theft]

Whoever, intending to take dishonestly any movable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.

Explanation 1: A thing so long as it is attached to the earth, not being movable property, is not the subject of theft; but it becomes capable of being the subject of theft as soon as it is severed from the earth.

Explanation 2: A moving effected by the same act which affects the severance may be a theft.

Explanation 3: A person is said to cause a thing to move by removing an obstacle which prevented it from moving or by separating it from any other thing, as well as by actually moving it.

Explanation 4: A person who by any means causes an animal to move, is said to move that animal, and to move everything which, in consequence of the motion so caused, is moved by that animal.

Explanation 5: The consent mentioned in the definition may be express or implied, and may be given either by the person in possession, or by any person having for that purpose authority either express or implied.

Illustrations:

(a) A cuts down a tree on Z's ground, with the intention of dishonestly taking the tree out of Z's possession without Z's consent. Here, as soon as A has severed the tree in order to such taking, he has committed theft.

(b) A puts a bait for dogs in his pocket, and thus induces Z's dog to follow it. Here, if A's intention be dishonestly to take the dog out of Z's possession without Z's consent, A has committed theft as soon as Z's dog has begun to follow A.

(c) A meets a bullock carrying a box of treasure. He drives the bullock in a certain direction, in order that he may dishonestly take the treasure. As soon as the bullock begins to move, A has committed theft of the treasure.

(d) If any person takes an article of jewellery, gold ring, diamond ring, watch, purse, money, mobile phone, or any valuable movable property belonging to another person without consent and with dishonest intention, such act constitutes the offence of theft.

[Section 379: Punishment for Theft]

Whoever commits theft shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Legal Classification: The offence of theft under Section 379 IPC is a cognizable offence, meaning the police have the authority and statutory duty to register an FIR and arrest the accused without a warrant. It is triable by any Magistrate and is a non-bailable offence.

[Section 303, Bharatiya Nyaya Sanhita, 2023 (BNS Reform)]

Section 303 of the Bharatiya Nyaya Sanhita, 2023 replaces Sections 378 and 379 of the Indian Penal Code. Sub-section (1) defines theft with identical essential ingredients (dishonest taking of movable property out of possession without consent). Sub-section (2) provides that whoever commits theft shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both. In cases of community service for petty theft where the value of stolen property is less than five thousand rupees and the person is a first-time offender, the court may sentence the offender to community service upon return of the stolen property.